

Saravanaraj vs Nirmala on 9 January, 2026

Author: P.Velmurugan

Bench: P.Velmurugan

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on : 29.10.2025

Pronounced on : 09.01.2026

CORAM:

THE HONOURABLE MR. JUSTICE P.VELMURUGAN

and

THE HONOURABLE MRS.JUSTICE L.VICTORIA GOWRI

C.M.A.(MD)Nos.370 & 371 of 2019

and

CMP(MD)No.4542 of 2019

CMA(MD)No.370 of 2019

Saravanaraj

... Appellant

Vs.

Nirmala

... Respondent

PRAYER: Civil Miscellaneous Appeal filed under Section 19 of the Family Court Act, 1984, to set aside the common judgement and decree dated 07.12.2018 and made in H.M.O.P.No.802 of 2016 on the file of the learned Family Court, Madurai.

CMA(MD)No.371 of 2019

Saravanaraj

... Appellant

Vs.

Nirmala

...Respondent /

<https://www.mhc.tn.gov.in/judis>

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PRAYER: Civil Miscellaneous Appeal filed under Section 19 of the Family Court Act, 1984, to set aside the common judgement and decree dated 07.12.2018 and made in H.M.O.P.No.425 of 2017 on the file of the learned Family Court, Madurai.

For Appellant : Mr.J.Barathan

For Respondent : No appearance

COMMON JUDGMENT

Prologue:

Marriage in Indian society is not merely a civil contract but a sacred union, carrying legal rights as well as emotional, social and moral obligations. When spouses approach the matrimonial Court with cross-claims, one seeking dissolution of marriage on the ground of cruelty, the other seeking restitution of conjugal rights. The Court is required to strike a careful balance between individual autonomy and the statutory mandate to preserve the marital tie, wherever possible, without compromising legal standards.

2. The present appeals arise out of a common judgment dated 27.11.2018 passed by the learned Judge, Family Court, Madurai, in H.M.O.P. No.425 of 2017 (filed by the husband for divorce under Section 13(1)(i-a) of the Hindu Marriage Act, 1955) and H.M.O.P. No.802 of 2019 of 2016 (filed by the wife for restitution of conjugal rights under Section 9 of the Act).

3. The learned Family Court, by a detailed order, dismissed the husband's divorce petition and allowed the wife's petition for restitution of conjugal rights. Aggrieved, the husband has preferred C.M.A.(MD) No. 370 of 2019, and C.M.A.(MD) No.371 of 2019. Both appeals are disposed of by this common judgment.

Case of the husband in H.M.O.P. No.425 of 2017 (Divorce petition):

4. The marriage between the appellant/husband Ramesh and the respondent/wife Nirmala was solemnised on 09.12.2012 at Ameer Mahal, Jayankondam, Ariyalur District, according to Hindu rites and customs, in the presence of relatives and friends of both families. After marriage, the couple resided in Chennai in a rented

house. The husband was employed in Chennai. Within a few weeks, he allegedly realised that the respondent wanted to lead a “luxurious and lavish” lifestyle as she had grown up in Mumbai, and that she felt disappointed with his financial position and background.

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5. According to him, the respondent frequently spoke of the “modern and luxurious” life she led at Mumbai, expressed that she had imagined marrying into a wealthy family, and felt that her “imaginary and luxurious life was ruined”. The husband states that he had borrowed money for marriage expenses and requested her to be economical till the loan was repaid, but she allegedly refused to understand his financial constraints.

6. He further alleges that when he requested her to come to his native place on 01.01.2013 and again during Pongal holidays, she showed reluctance, remained upset, and kept aloof from his parents and relatives despite repeated requests to mingle and speak with them. The husband’s case is that the respondent repeatedly threatened that she would commit suicide and on many occasions “tried to do so”, causing him constant fear and mental agony.

7. The husband contends that the respondent insisted that he must sever ties with his parents, not contact them and not send money to them, stating that only then she would live with him; otherwise, she would desert him. According to him, on 14.07.2014, the respondent, <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 without his knowledge or consent, allegedly left the matrimonial home with all her belongings, including dresses, jewellery and vessels, leaving only the thali chain in the almirah. When questioned by the house owner, she purportedly stated that her employment was transferred to another place and that the husband would continue to reside there.

8. It is the specific case of the husband that after she left, he made several attempts through elders and relatives to bring her back and “get a new leaf” in the relationship, but all such attempts failed. He therefore filed H.M.O.P. No.425 of 2017 before the learned Family Court, Madurai, seeking a decree of divorce on the ground of cruelty under Section 13(1)(i-a) of the Act.

Case of the wife in H.M.O.P. No.802 of 2016 (Petition for restitution of conjugal rights):

9. The factum of marriage on 09.12.2012 is admitted. She states that at the time of marriage, her parents gave 25 sovereigns of jewellery to her and 3 sovereigns to the husband; Rs.50,000/- at betrothal and Rs.50,000/- after marriage as dowry, besides household articles. She asserts that after marriage, the couple lived in Chennai for about two <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 months. The husband, being employed at Chennai, allegedly demanded her entire salary once she joined employment. She initially worked for about 1½ months at Global Health City Hospital, and thereafter, on his initiative, attended an interview at Guindy and worked there for approximately 1½ years.

10. The wife alleges serious dowry demands and cruelty that the husband and his mother repeatedly demanded more cash and jewellery; that on the wedding day, the husband's family demanded Rs.1,00,000/- from her parents, who could only pay Rs.10,000/- immediately and later Rs.50,000/- through the respondent's uncle; that holidays like New Year and Pongal also saw fresh demands and humiliating comments.

11. She alleges that the husband habitually consumed alcohol, verbally abused her, calling her "worse than a prostitute," commenting on her complexion and appearance, comparing her with his alleged ex- girlfriend, locking her inside the house at night and leaving, frequently telling her to remove the mangalsutra and go back to her parental home.

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12. It is her specific allegation that she became pregnant twice. On both occasions, the husband and his family insisted on abortion, threatening that he would commit suicide or abandon her if she did not comply. She claims that both pregnancies were terminated under compulsion. The wife further states that the husband's mother repeatedly threatened that she would ensure her son divorced the respondent and marry him to a "wealthier and more beautiful" woman and kept demanding cash, diamonds and articles for future grandchildren.

13. She avers that the petitioner and his family ill-treated and harassed her to such an extent that she was compelled to leave the matrimonial home and shift to a hostel with some belongings. When her relatives tried to mediate, the husband allegedly lodged a police complaint against her uncle, portraying him as a threat, and prevented her entry into the matrimonial home.

14. She states that she later suffered from typhoid and was admitted to hospital twice, but the husband and his family showed no concern for her health. Despite all this, she asserts that she does not want to leave the petitioner, as he is responsible for the torture she suffered, and she is anxious about her future and social stigma. Hence, she seeks restitution of conjugal rights.

15. The learned Family Court, Madurai, conducted a joint trial of H.M.O.P. No.425 of 2017 (husband's divorce petition) and H.M.O.P. No. 802 of 2016 (wife's petition for restitution of conjugal rights).The husband, who is the petitioner in H.M.O.P. No.425 of 2017 and respondent in H.M.O.P. No.802 of 2016, was examined as P.W.1 and marked Exs.P1 to P4. The wife, who is the petitioner in H.M.O.P. No.802 of 2016 and respondent in H.M.O.P. No.425 of 2017, was examined as R.W.1 and marked Exs.R1 to R10. She subsequently produced further documents including bank passbooks and contest-related documents.

Gist of the trial court's common judgment:

16. The learned Family Court framed the following points for consideration:

(i) Whether the petitioner/husband in H.M.O.P. No.425 of 2017 is entitled to a decree of divorce as prayed for?

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(ii) Whether the petitioner/wife in H.M.O.P. No.802 of 2016 is entitled to a decree for restitution of conjugal rights?

(iii) To what other reliefs, if any, are the parties entitled?

17. With regard to the husband's case, the learned Family Court minutely analysed his pleadings and evidence and found several material contradictions:

Though in the petition he claimed that immediately after marriage they started living at a rented house at Narasingapuram, Maduvinar, Guindy, in cross-examination he admitted that they first lived at Door No.1, Jeeva Nagar, 1st Cross Street, Pallikaranai, and that the Ooty trip and certain intermediate stays were not disclosed as pleaded. He admitted that the respondent worked at Global Hospital only up to 11.02.2013 and that he himself later took her to another job at Guindy, contradicting his own case that she continued at Global Health City.

The allegation that she refused to visit his native place or meet his parents was not corroborated by any independent witness.

18. On the allegation of "luxurious and lavish" lifestyle, the learned Family Court took note of Ex.R7, relating to the respondent's <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 father's employment as Jr. Aircraft Equipment Operator at Mumbai airport, showing a basic pay of Rs.10,375/- as on 30.01.2014. Considering that he had three daughters and lived in Mumbai, the Court observed that it was improbable for the respondent to have been brought up in such luxury as to demand an opulent lifestyle from the husband. The allegation was held to be unsubstantiated and exaggerated.

19. As regards marriage expenses, the husband admitted in cross-examination that he had not produced any document to substantiate his claim that he spent Rs.12,00,000/- for the marriage or that he borrowed Rs.7,00,000/- for that purpose. The learned Family Court held that his financial grievance was not a proven ground of cruelty.

20. On the issue of the wife's alleged employment at Global Health City and her alleged residence there, the Court examined Ex.R1 – identity card and the husband's admissions. It found that, as on 22.12.2014, when he filed an earlier HMOP for divorce at Chennai, the respondent was not residing at Global Health City or at Medavakkam; <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 yet the husband had shown a false address for the respondent. Summons were returned as "not residing", leading to paper publication.

The Court drew an adverse inference that the husband deliberately gave a wrong address to proceed ex parte.

21. The allegation of suicide attempts was also not proved. The husband admitted that he had not stated in the petition as to who rescued her, or the manner, date or time of any attempt. No medical or other corroborative evidence was produced. The Court held this allegation to be a bald assertion.

22. The claim that the respondent voluntarily left the matrimonial home on 14.07.2014 with all belongings, leaving only the thali in the almirah, was not proved. No landlord or other witness was examined to support this narrative. The learned Family Court emphasised that the burden was on the husband, as petitioner for divorce, to establish cruelty and desertion, which he failed to discharge.

23. The husband's assertion of making reconciliation efforts was also found wanting. He admitted that he had not mentioned in the <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 earlier HMOP or in his present proof affidavit any specific details of panchayat or mediation; no such elders were examined. On the contrary, Ex.R2 – copy of email sent by the wife to the Chief Minister's Special Cell – indicated that she was still living with her parents in the hope that he would take her back, which the Court treated as proof of her desire to resume cohabitation.

24. On jurisdiction, the husband contended that the wife was residing at Mumbai and had left her job. Therefore, the petition for restitution of conjugal rights at Madurai was not maintainable. The learned Family Court examined Ex.R5 and Ex.R6 – HDFC and SBI passbooks in the wife's name. Ex.R6 showed issuance on 06.02.2014 with a Madurai address. The Court held that she was residing at Madurai when she filed H.M.O.P. No.802 of 2016, thereby affirming territorial jurisdiction.

25. The learned Family Court ultimately held that the husband failed to prove cruelty under Section 13(1)(i-a), whereas the wife had established her willingness to live with him, as evidenced by filing H.M.O.P. No.802 of 2016 and her email. It dismissed H.M.O.P. No.425 of 2017 and allowed H.M.O.P. No.802 of 2016, granting a decree for restitution of conjugal rights and directing the husband to join the wife <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 within two months.

Grounds of appeal:

26. In C.M.A.(MD) No.370 of 2019 and C.M.A.(MD).No.371 of 2019, the husband contends inter alia that the judgment and decree are against law, weight of evidence and probabilities. The Court below was biased in favour of the wife and wrongly relied on her defence and extraneous materials. The learned Trial Court ought to have rejected the wife's case that she left the home due to threats, especially since she allegedly took all belongings but left the thali in the almirah. The learned Family Court erred in rejecting his version regarding marriage expenses and borrowing of Rs.7,00,000/-. The Court erred in relying on Ex.R1 identity card, which was never shown by the wife during subsistence of marriage. The Court erred in holding that the wife did not desire a luxurious life

merely because her father's income was meagre. The Court wrongly drew adverse inference from the earlier HMOP filed at Chennai, particularly about the address. The Court failed to see that the wife's conduct was quarrelsome, disrespectful to his parents, involved frequent desertion from the matrimonial home, and made continued marital life impossible. The decree for restitution of conjugal rights was wrongly granted, and directing him to live with the <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 wife within two months was unsustainable.

Submissions:

27. The learned counsel for the husband reiterated the pleadings and urged that the wife was not interested in marital life, insisted on luxuries, and constantly demeaned the husband and his parents. She repeatedly threatened suicide and then left with all belongings, leaving the thali behind clearly indicated an intention to sever the marital bond. Long separation and her conduct cumulatively constituted mental cruelty. Reliance was placed on Naveen Kohli v. Neelu Kohli¹, to contend that where a marriage has irretrievably broken down, a decree of divorce should follow. The learned Family Court erred in disbelieving the husband's testimony and in drawing adverse inference from the earlier HMOP at Chennai.

28. However none appeared on the side of wife.

29. Heard the learned counsel for the petitioner and carefully perused the materials available on record.

1 (2006) 4 SCC 558 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 Points for determination:

30. In the light of the rival submissions and the record, the following points arise for consideration:

(i) Whether the appellant/husband has established that the respondent/wife treated him with such cruelty, within the meaning of Section 13(1)(i-a) of the Hindu Marriage Act, as to entitle him to a decree of divorce?

(ii) Whether the respondent/wife has established her entitlement to a decree for restitution of conjugal rights under Section 9 of the Act?

(iii) Whether the learned Family Court's common judgment in H.M.O.P. Nos.425 of 2017 and 802 of 2016 calls for interference in these appeals?

Analysis:

31. The concept of "cruelty" in matrimonial law is now well settled. In Samar Ghosh v. Jaya Ghosh², the Hon'ble Supreme Court observed that mental cruelty must be

assessed in the light of the parties' social status and the entire factual matrix, and that no straitjacket formula can be laid down. Persistent abusive and

2 2007) 4 SCC 511 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 humiliating conduct, false allegations, sustained neglect or indifference, or conduct which makes cohabitation impossible may amount to cruelty, but trivial irritations and normal wear and tear of married life cannot.

32. As regards irretrievable breakdown of marriage, in Naveen Kohli v. Neelu Kohli³, the Hon'ble Supreme Court recommended legislative recognition of irretrievable breakdown as a ground for divorce and, in that specific case, granted divorce under Article 142. However, the Court subsequently clarified umpteen times, that irretrievable breakdown is not an independent statutory ground and that High Courts cannot dissolve a marriage solely on that basis in the absence of statutory provision. Similar emphasis appears in Savitri Pandey v. Prem Chandra Pandey⁴.

33. Thus, this Court, exercising jurisdiction under the Hindu Marriage Act, 1955, cannot grant divorce merely on the ground that the parties have been separated for long or that the marriage appears emotionally dead, unless the statutory grounds, such as cruelty or 3 (2006) 4 SCC 558 4 (2002) 2 SCC 73 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 desertion, are duly proved.

34. The husband's allegations may be grouped broadly into:

- (i) Wife's alleged desire for a luxurious life and disdain for his financial status and parents;
- (ii) Alleged refusal to visit or mix with his parental family;
- (iii) Alleged threats and attempts to commit suicide;
- (iv) Alleged unilateral desertion by leaving the matrimonial home with belongings; and
- (v) Alleged absence of any intention to resume cohabitation.

35. Firstly, the learned Family Court has carefully analysed Ex.R7 (service particulars and pay of the respondent's father) and the husband's own admissions. Given the modest pay of the respondent's father, residing in Mumbai with three daughters, the allegation that she insisted on living an extravagant lifestyle beyond the husband's means appears inherently improbable. Moreover, no neighbour, friend or relative was examined to show specific instances of such insistence. This Court finds no perversity in the learned Family Court holding this allegation to be unsubstantiated.

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36. Secondly, the husband alleged that the respondent remained aloof and refused to speak with his parents during visits. But again, no independent witness was examined not even his parents or relatives who allegedly witnessed the behaviour. His own cross-examination reveals inconsistencies regarding where they resided immediately after marriage and when they visited the native place. In matrimonial litigation, especially where serious relief of divorce is sought, Courts require clear, cogent and consistent evidence; that standard is not met here.

37. Thirdly, on the ground of threats of suicide is concerned, the husband conceded in cross-examination that he had not mentioned in his petition who allegedly rescued the wife, nor provided date, time or method of the alleged attempts. No medical record or contemporaneous complaint was produced. As observed in *Samar Ghosh v. Jaya Ghosh*⁵, stray allegations without evidentiary support cannot be elevated to cruelty. This Court concurs with the learned Family Court that this head of cruelty is not proved.

38. Fourthly, on the ground of desertion is concerned, the 5 2007) 4 SCC 511 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 husband states that the wife left with all belongings on 14.07.2014, leaving the thali in the almirah, and informed the landlord that she was transferred. Yet neither the landlord nor any other independent witness has been examined. The burden of proof for cruelty and desertion lies squarely on the petitioner seeking divorce. In the absence of corroboration, and in the light of the wife's consistent narrative of being driven out due to harassment, the learned Family Court rightly declined to accept the husband's unilateral version.

39. Fifthly, as far as the intention of the wife not to resume cohabitation is concerned, the record tells against the husband rather than in his favour. It is the wife who filed H.M.O.P. No.802 of 2016 for restitution of conjugal rights, and also sent an email to the Chief Minister's Special Cell expressing her desire to live with the husband (Ex.R2). In contrast, in his cross-examination, the husband candidly admitted that even if the respondent now rectified her alleged mistakes, he is not willing to live with her. This admission completely undercuts his plea that he made sincere reconciliation efforts.

40. In *K. Srinivas Rao v. D.A. Deepa*⁶, the Hon'ble Supreme 6 (2013) 5 SCC 226 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 Court held that false complaints and repeated unfounded allegations can amount to mental cruelty. In the present case, however, it is the husband's unproved allegations which are more suspect, whereas the wife's counter-allegations of dowry demand and harassment fit a consistent pattern supported by her evidence. There is no police complaint proved from her side which has been held false so as to visit cruelty upon her.

41. In the considered view of this Court, the learned Family Court has undertaken a proper appreciation of evidence, and its conclusion that cruelty by the wife is not established is in consonance with the principles laid down in *Samar Ghosh v. Jaya Ghosh*⁷ and *Savitri Pandey v. Prem Chandra Pandey*⁸. No ground is made out to interfere with such finding.

42. It is true that the parties have been living separately for several years. However, as already noted, the Hon'ble Supreme Court has repeatedly clarified that irretrievable breakdown is not, by itself, a statutory ground under the Hindu Marriage Act, 1955, and that such a 7 2007) 4 SCC 511 8 (2002) 2 SCC 73 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 relief is ordinarily exercised only by the Hon'ble Supreme Court under Article 142 .

43. The learned Family Court, therefore, committed no error in declining to treat long separation alone as a ground to “snap the marital tie”, particularly when the husband failed to prove cruelty or desertion and the wife positively sought restitution of conjugal rights.

44. This Court, exercising appellate jurisdiction under the Act, cannot convert a long, troubled marriage into a case of irretrievable breakdown absent statutory grounds. To do so would amount to legislating from the Bench, which is impermissible.

45. Turning to the wife's petition under Section 9, the essential requisites are: (i) existence of a valid marriage; (ii) withdrawal of one party from the society of the other; and (iii) absence of any reasonable cause for such withdrawal. The factum of marriage is admitted. The husband himself pleads that the wife left the matrimonial home and has been residing away. The key question, therefore, is whether she has withdrawn without reasonable cause, and whether she is genuinely <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 willing to resume cohabitation.

46. The learned Family Court has carefully analysed the pleadings and the evidence, including Ex.R2 (email to the Chief Minister's Cell), and concluded that the wife has consistently expressed her readiness to live with the husband. Indeed, the very filing of H.M.O.P. No.802 of 2016 is a clear indicator of her intention.

47. On the other hand, the husband's categorical statement in cross-examination that he is unwilling to live with her, even if she corrects herself, fortifies the inference that it is he, and not the wife, who is resisting cohabitation. This strengthens the wife's case for restitution and simultaneously weakens his case for divorce. As regards territorial jurisdiction, Ex.R6 – SBI passbook – shows that the wife was residing at Madurai since 06.02.2014, much prior to the filing of H.M.O.P. No.802 of 2016. The plea that she is “really” resident in Mumbai and that she manipulated jurisdiction is unsupported by any cogent material. This Court finds no infirmity in the learned Family Court's conclusion that H.M.O.P. No.802 of 2016 was properly instituted in Madurai.

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019

48. Accordingly, the decree for restitution of conjugal rights in favour of the wife is supported by evidence and in conformity with Section 9 of the Act. No ground is made out to interfere with the same in appeal.

49. On a comprehensive re-appreciation of the entire evidence, this Court is satisfied that

(a) The husband has failed to establish cruelty by the wife within the meaning of Section 13(1)(i-a) of the Hindu Marriage Act;

(b) The plea of irretrievable breakdown founded merely on long separation cannot be entertained by this Court as a standalone ground for divorce, in the absence of statutory provision;

(c) The wife has, on the other hand, established her willingness to resume cohabitation and has validly sought restitution of conjugal rights; and

(d) The learned Family Court, Madurai, has correctly appreciated the facts and applied the law; its judgment does not suffer from perversity, misreading of evidence, or misapplication of legal principles. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019

50. Interference in appellate jurisdiction under Section 19 of the Family Courts Act, 1984, is called for only when the findings of the learned Family Court are perverse or contrary to law. On the contrary, the impugned common judgment is well reasoned and supported by evidence and authority.

51. In the result, C.M.A.(MD) No.370 of 2019 and 371 of 2019 filed by the husband, stands dismissed.

52. The common judgment and decree dated 27.11.2018 passed by the Family Court, Madurai, in H.M.O.P. No.425 of 2017 and H.M.O.P. No.802 of 2016 are confirmed. No order as to costs in both the appeals. Consequently, connected miscellaneous petitions are closed.

Epilogue:

53. Matrimonial litigation often brings to Court relationships that are frayed more by wounded egos and entrenched positions than by any single dramatic event. The statutory grounds for severing a marital bond must, however, be strictly proved; a Court cannot dissolve a <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 03:20:31 pm) C.M.A.(MD)Nos.370 & 371 of 2019 marriage merely because one spouse feels the relationship has become untenable. In the present case, while the marriage has unquestionably undergone strain, the husband has not established cruelty in the legal sense. On the other hand, the wife's willingness to resume cohabitation stands judicially recorded. If the parties, despite this judgment, still choose not to rebuild their relationship, that is a matter of personal choice; but such choice cannot be substituted for statutory grounds under the Hindu Marriage Act.

54. The Court can only apply the law as it stands. Within that framework, these Civil Miscellaneous Appeals must fail and the same are accordingly dismissed.

[P.V., J.]

NCC : Yes / No
Index : Yes / No
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P. VELMURUGA

L.VICTORIA GOWRI,

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